

legal document

Service Agreement

This Service Agreement ("Agreement") is made and entered into on [Effective Date] by and between:

1. Parties

- **Service Provider:** Tech Solutions Inc., a corporation organized under the laws of the State of California, with its principal place of business at 1234 Innovation Drive, San Francisco, CA 94105 ("Provider").
- **Client:** Green Energy LLC, a limited liability company organized under the laws of the State of New York, with its principal place of business at 5678 Sustainability Ave, New York, NY 10001 ("Client").

2. Scope of Services

The Provider agrees to deliver the following services ("Services") to the Client:

- Development and implementation of a customized energy management software solution.
- Provision of ongoing maintenance and technical support for the software.
- Training sessions for Client's staff on the effective use of the software.

3. Term

This Agreement shall commence on [Start Date] and continue for a period of **two (2) years**, unless terminated earlier in accordance with the provisions of this Agreement.

4. Compensation

In consideration for the Services, the Client agrees to pay the Provider as follows:

- **Project Fee:** A total of **\$250,000**, payable in four (4) equal installments of **\$62,500** each, due at the completion of each project milestone as outlined in **Exhibit A**.
- **Maintenance Fee:** A recurring fee of **\$5,000** per month, commencing upon the successful deployment of the software.

5. Confidentiality

Both parties acknowledge that during the term of this Agreement, they may have access to confidential and proprietary information. Both parties agree to:

- Maintain the confidentiality of such information.
- Not disclose it to any third party without prior written consent.
- Use the information solely for the purposes of fulfilling their obligations under this Agreement.

6. Intellectual Property Rights

All intellectual property rights arising from the Services, including but not limited to software code, designs, and documentation, shall be owned by the Provider. The Provider grants the Client a non-exclusive, non-transferable license to use the delivered software for its internal business operations.

7. Limitation of Liability

Except in cases of gross negligence or willful misconduct, neither party shall be liable for any indirect, incidental, or consequential damages arising out of or related to this Agreement. The total liability of either party shall not exceed the total amount paid under this Agreement.

8. Termination

Either party may terminate this Agreement with **thirty (30) days'** written notice if the other party breaches any material term of this Agreement and fails to cure such breach within the notice period. Upon termination, the Client shall pay the Provider for all Services rendered up to the termination date.

9. Governing Law

This Agreement shall be governed by and construed in accordance with the laws of the State of California, without regard to its conflict of law principles.

10. Dispute Resolution

Any disputes arising out of or in connection with this Agreement shall be resolved through **binding arbitration** in San Francisco, California, in accordance with the rules of the American Arbitration Association.

11. Entire Agreement

This Agreement constitutes the entire understanding between the parties and supersedes all prior agreements, representations, or understandings, whether written or oral, regarding the subject matter herein.

IN WITNESS WHEREOF, the parties hereto have executed this Agreement as of the Effective Date.

Provider: Tech Solutions Inc.

By: _____

Name: [Authorized Representative Name]

Title: [Title]

Date: [Date]

Client: Green Energy LLC

By: _____

Name: [Authorized Representative Name]

Title: [Title]

Date: [Date]